

nized that the judicial, prosecutorial, and legislative functions require absolute immunity. But this protection has extended no further than its justification would warrant. In *Gravel*, for example, we emphasized that Senators and their aides were absolutely immune only when performing "acts legislative in nature," and not when taking other acts even "in their official capacity." 408 U. S., at 625. See *Hutchinson v. Proxmire*, 443 U. S. 111, 125-133 (1979). Our cases involving judges<sup>15</sup> and prosecutors<sup>16</sup> have followed a similar line. The undifferentiated extension of absolute "derivative" immunity to the President's aides therefore could not be reconciled with the "functional" approach that has characterized the immunity decisions of this Court, indeed including *Gravel* itself.<sup>17</sup>

## C

Petitioners also assert an entitlement to immunity based on the "special functions" of White House aides. This form

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<sup>15</sup> See, e. g., *Supreme Court of Virginia v. Consumers Union of United States*, 446 U. S. 719, 731-737 (1980); *Stump v. Sparkman*, 435 U. S. 349, 362 (1978).

<sup>16</sup> In *Imbler v. Pachtman*, 424 U. S. 409, 430-431 (1976), this Court reserved the question whether absolute immunity would extend to "those aspects of the prosecutor's responsibility that cast him in the role of an administrator or investigative officer." Since that time the Courts of Appeals generally have ruled that prosecutors do not enjoy absolute immunity for acts taken in those capacities. See, e. g., *Mancini v. Lester*, 630 F. 2d 990, 992 (CA3 1980); *Forsyth v. Kleindienst*, 599 F. 2d 1203, 1213-1214 (CA3 1979). This Court at least implicitly has drawn the same distinction in extending absolute immunity to executive officials when they are engaged in quasi-prosecutorial functions. See *Butz v. Economou*, 438 U. S., at 515-517.

<sup>17</sup> Our decision today in *Nixon v. Fitzgerald*, ante, p. 731, in no way abrogates this general rule. As we explained in that opinion, the recognition of absolute immunity for all of a President's acts in office derives in principal part from factors unique to his constitutional responsibilities and station. Suits against other officials—including Presidential aides—generally do not invoke separation-of-powers considerations to the same extent as suits against the President himself.